सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
SAHAR, ANDHERI (EAST), MUMBAI – 400 099
E-mail- proaccsahar@gmail.com Phone-022-22816696

F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 6 Date: .08.2020

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 24.07.2020

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 24.07.2020 at 03.00 pm and was Co-chaired by Shri Vijay Singh Chauhan, Commissioner of Customs (General), Shri Ananta Krishnan, Commissioner of Customs (Export) and Shri Vinayak Azaad, Commissioner of Customs (Import). In view of the government directives advising "social distancing" and restrictions on avoidable movements on account of the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives from the stakeholder organizations participated in the meeting:

Name & designation		**Organization**
Shri M. K. Sarangi, Addl. Commissioner (Import)		Customs, ACC,Andheri
Shri Vishal Sanap, Addl. Commissioner (Import)		Customs, ACC, Andheri
Shri Prabhakar Kumar, Jt. Commissioner (Export)		Customs, ACC, Andheri
Shri M.H. Hingorani, AC (Import)		Customs, ACC, Andheri
Shri Bipin Jadhav, AC (Import)		Customs, ACC, Andheri
Shri Ashwini Bandekar, AC (Import)		Customs, ACC, Andheri
Shri Roshan Lal, AC (Import)		Customs, ACC, Andheri
Shri S C Das, AC (General)		Customs, ACC, Andheri
Name of attendees from stakeholder organizations		**Organization**
Shri DushyantMulani, Shri Sanjeev Harale, Shri Kaushal Thakkar, Shri Ketan Desai, Shri K.Shetty, Shri GanpatKorde, Shri ShanakarShinde		BCBA
Shri Bala Ayer		ACAAI
Shri Manoj Singh		MIAL
Shri RajDhule, Shri Jignesh		AIATSL
Shri Mark Fernandes		MSF Bombay
Shri Rishikesh		Siemens Healthcare
Shri Vasudevan, Shri Gaurav Dogar		DHL Express
Shri Venkatraman		DHL Logistics
Shri Newton Fernandes		All Nippon Airlines
Other attendees		
Shri Paresh Shah	Shri Nandan Kanchan	Shri Anwar Khan
Shri Mangesh Mali	Shri Sorab P Engineer	Smt. Chaitaly Mehta
Shri Rajiv Desai	Shri Sanjeev Harale	Shri Dayanand Kotian
Smt. Vaishali Kulkarni	Shri Abdul Gafume	Shri Paresh Sangani
Shri Prathmesh Sirambedkar	Shri Lynn Bothello	Shri Ashish Pednekar

Scanned with CamScanner

1. **Online module/ e-mail Id, for registration of A.D. Code for fresh applications by exporters.**

(Export Comm'te)

The AD Code was being validated on the strength of the original documents for address and bank details of the IEC holder for ensuring that the export benefits go to the correct entity.

Additional Commissioner of Customs, Import, ACC informed that a Public Notice No. 97/2020, dated 13.07.2020, based on CBIC Circular no. 32/2020-Customs, dated 06.07.2020, was issued, wherein the functionality for online application for AD Code registration and Bank accounts through ICEGATE had been introduced.

(Point closed)

2. **Online payment module for surrender of drawback and MEIS benefit for re-import shipments and also for voluntary surrender of incentives.**

(BCBA)

BCBA was to share information regarding such processes that may be moved to electronic medium. BCBA conveyed that a letter regarding this has been shared with Shri Prabhakar Kumar, JC/Export, and Shri M.H. Hingorani, AC/PRO (Import). Accordingly, Commissioner (G) requested BCBA to expedite submission of the promised information and assured that appropriate proposal would be made to CBIC after examining the submissions made by BCBA.

(Action -BCBA)

3. **We appreciate MIAL and entire cargo team for mitigating the non-traceability of packages in the import shed to a great extent: (MIAL had been requested to provide a list of such packages)**

(MIAL/BCBA)

A list comprising 1215 pending consignments for clearance for the months of January, February, March and April, 2020 was duly provided by MIAL and the same had been uploaded on the website of ACC, Mumbai. Commissioner (G) requested BCBA to inform the concerned importers for ensuring that the clearance of the pending consignments takes place at the earliest.

Shri Manoj Singh from MIAL informed that pending clearance position for the months of March and April, 2020, had significantly improved to 94%.

(Point closed)

4. **Extra point raised**: Mr. Mark Fernandes, MSF Bombay, while thanking the stakeholders, reported that some of officers in exports were raising objections and exports were being stopped. In a particular case, officers had asked to see IGST invoice and original invoices before allowing the consignment for export. The said issue was brought to the knowledge of JC(X), Shri Prabhakar Kumar and Shri Dushyant Mulani, but such issues were unresolved. He requested for resolution as it was not possible to come physically to ACC for the same. Commissioner (G) requested to provide specific detail of the case so that issue could be investigated and resolved at the earliest.

The Commissioner (Export) informed that presently, IGST and invoices are to be uploaded on e-Sanchit. Hence, the need for producing physical invoice at the time of examination would not be necessary. Further, he also assured the trade that any specific case/ query could be escalated and taken up with him directly.

(Point closed)

B. Discussion on Time Release Study (TRS) 2020

Commissioner (G) requested BCBA and other stake holders to go through the data included in the ACC TRS 2020, which had been uploaded on the ACC website, as no feedback has been received so far regarding the same. Once the stakeholders scrutinize the data, discussion, if any, on the issue may be taken up in the next PTFC meeting.

C. Fresh Agenda Points

Scanned with CamScanner

BCBA

1. Delay in issuance of DO and Documents by FedEx, DHL, Airlines, etc., resulting in delay in clearance.

Trade highlighted the tremendous difficulty in clearance of import consignments due to delay in issuance of documents and Delivery Order (DO) by Airlines and Stakeholders, such as FEDEX, DHL, etc. Further, Trade was facing acute problem in making payment of the charges since these were not available online and one needed to visit their counters personally several times. Furthermore, even after payment is realized by them, these entities take considerable time, almost 1 day, to issue the online DO.

Suggestion put forth by BCBA while submitting the Agenda Point:

a) We suggest that in today's paperless environment, for all the Airlines and Console Agents, there should be time wise accountability in issuance of Cargo Arrival notice along with charges within 2 to 3 hrs of landing.

b) The Delivery Order charges should be available online on their website and upon payment of charges online, the Delivery Order should be released within 30 minutes to the Custodian. We kindly request for issuance of Public Notice to ensure time wise accountability for improving Dwell time for clearance.

c) All Airlines and Consol agents need to indicate their email ids and telephone numbers on the Cargo Arrival Notice for escalation."

Shri Gaurav Dogar, Clearance Manager, DHL Express said that DO counters were closed due to the ongoing pandemic caused by Covid 19. However, the option of online DO release and payment was available. All the importers had been advised to share the DO payment receipt and UTR details and within one hour of the same, the Delivery Order was being shared online and subsequently it is shared on email, too. Additionally, he informed, a credit facility for Indian customers has been started wherein the DOs are being released on arrival itself.

Commissioner (G) highlighted the issue of the shipments transferred from Courier mode to Cargo mode, where clearances encountered inordinate delays. Shri Gaurav Dogar responded that they needed to transfer shipments after CTM permission, where the role of custodian, i.e., EICI is also involved. He added that they had witnessed acute congestion leading to delays in tracing the shipments in the EICI terminal. He assured to resolve the issue as soon as possible and suggested to the Trade to highlight specific cases to them for resolving the same.

Shri Vasudevan, Compliance Manager, DHL Express further added that EICI is in transition phase, where MIAL would be taking over, beginning 1st August, 2020. He added that some work is being done on ECCS, through which data is transferred from Courier to Air Cargo. On request of Shri Dushyant Mulani, representing BCBA, Shri Vasudevan agreed to send a note comprising their contact email ids, for raising specific case-based queries for swift clearance, to BCBA for onward circulation among importers.

(Point closed)

2. EDI Systems needs to have inbuilt validation for capturing the date of feeding the Inward Date in the EDI system

Trade highlighted that on various occasions it had been observed that IGM inward date which is filed after landing of aircraft, is filed on a date prior to landing date of flight. This results in levy of interest and late submission charge and also demurrage by Custodian, based on the incorrect updating of inward date.

Suggestion put forth by BCBA while submitting the Agenda Point:

"We request that inbuilt validation should be created in EDI system for capturing the accurate feeding time and date of inward-date, on real time basis."

Commissioner (G) observed that the charges levelled by BCBA are serious in nature and it would be appropriate that such charge against the custodian are made along with proper evidence. He assured that strict and swift action will be taken in this regard once the evidence is submitted by BCBA. Commissioner (G) also directed that this complaint be taken up for further

Scanned with CamScanner

discussion in the next PTFC, in case BCBA does not submit the evidence before the said meeting.

(BCBA)

3. **Extension of period under Public Notice 87/2020**

Trade highlighted that due to the prevailing Covid 19 situation not all importers had started work operations from their offices due to which obtaining signatures on BOND/LUT had become a challenge. Also, that the importers were finding difficult to procure Stamp Papers for furnishing the Bonds. Trade sought the extension of PN No. 87/2020, dated 30.5.2020, for the convenience of Trade.

Commissioner (G) explained that the Public Notice derived its authority from CBIC Circular 17/2020, dated 03.04.2020. Further, that the said issue had already been taken up with CBIC by Chief Commissioner of Customs, Mumbai Zone-III, and same would be intimated after receiving reply from the Board.

(Point closed)

4. Members are facing problems with the Custodian AIATSL for warehouse charges payment, as they do not accept cheques. The AIATSL accepts only cash or transfers via RTGS. Our kind request to AIATSL to accept cheques and provide this facility to Trade members.

AIATSL informed that PD accounts are being updated twice a day, and RTGS & NEFT facility had also been extended on account of lockdown due to Covid 19. AIATSL stated that their preference for the payment via PD account or via RTGS is given priority to ensure financial propriety and the present need of social distancing.

(Point closed)

5. **Payment of import/export warehouse charges to Custodian.**

There is a need of quick response from both the Custodians MIAL and AIATSL when the members are making RTGS payment to them. We must have the contact details telephone numbers, cell numbers, e-mail ids to enquire about the credit of their PD Accounts.

MIAL stated that they had already issued a circular regarding contact details and BCBA stated that case to case basis details will be brought to the notice of the competent authority.

(Point closed)

6. **Shipping Bill prints.**

The online SB Prints after LEO are received very late and sometimes even on the next working day. Due to this, the old practice of getting SB Prints after LEO, was still prevalent. Request to take up the matter with DG Systems regarding the said matter.

Commissioner (Export) assured that matter will be taken up with DG Systems to resolve the issue of delayed Shipping Bill Prints and hoped that the issue would be resolved before next PTFC meeting. Further, Commissioner (Export) assured that the decision to discontinue printing of Shipping Bills at CMC counter would also be taken before the next PTFC meeting in consultation with all the stakeholders.

(Export Comm'te)

<u>ACAAI</u>

7. We request that the Customs and the Custodians enforce social distancing very strictly.

"This time is not normal and everybody is working with severe constraints. The Customs, Custodians and the Customs Brokers are doing their best under the circumstances. We wish to thank the Customs and the custodians for their efforts. We do wish to make one point: We have

Scanned with CamScanner

observed that Social Distancing is not at all being observed by Customs, Custodians nor the Customs Brokers. We do not wish the ACC to become another hot spot."

Commissioner (G) emphasized the importance of "social distancing" in our coordinated battle against COVID 19. He however wanted the emphasis to shift from "enforcing social distancing" to "observance of social distancing" by each individual stakeholder at ACC. In this regard, all the stake holders must impress upon their members to follow the norms of social distancing. Only when most of the members/ stakeholders observe the conduct of social distancing, will the enforcement of the few exception cases will be effective.

The meeting ended with thanks to the Chair.

This issues with the approval of Commissioner of Customs (General/Import/Export), Mumbai Customs Zone-III.

21/05/20

(M.K. Sarangi)
संयुक्त आयुक्त सीमाशुल्क) आयात(
Addl. Commissioner of Customs (Import)
हवाईमालसंकुल,सहार,मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Asst, Drug Controller, ACC, Sahar.
8. Office copy.

Scanned with CamScanner